

SMITH v. CARTWRIGHT

21CV45132

PLAINTIFF'S MOTION FOR JUDGMENT ON THE PLEADINGS

At its essence, this is a landlord-tenant dispute. Defendant is the record owner of 5348 Messing Road in Valley Springs, and leased the property to plaintiff with an option to purchase at a fixed sum within two years. According to plaintiff, defendant reneged on the agreement, and secretly recouped rent from tenants in the "front" house on the property despite plaintiff's rental agreement purportedly covering both residences. The history between plaintiff and defendant is complex, as reflected in the various legal proceedings between them. (See 20CH45068, 21UD13373, 21UD13416, and 21CH45278.) In this seemingly ordinary civil action, plaintiff alleges thirteen (13) causes of action, ranging from breach of contract to invasion of privacy and assault.

Before the Court is plaintiff's motion for judgment on the pleadings (defendant's answer, filed 09/02/21), and defendant's separate *ex parte* application for leave to file an amended answer. Defendant's answer is arguably deficient because it is not verified (CCP §446(a)) and defendant did not allege in the answer an exception to the verification requirement (see *Paul Blanco's Good Car Co. Auto Group v. Superior Court* (2020) 56 Cal.App.5th 86, 110). However, the proper way to address this deficiency is with a motion to strike under CCP §436(b), not a motion for judgment on the pleadings under CCP §438(c)(1)(A), and the failure to timely file a motion to strike waives the defect. (See *Zavala v. Board of Trustees* (1993) 16 Cal.App.4th 1755, 1760-1761.) Considering that defendant's former attorney filed the answer in haste just prior to withdrawing from the case, and that this answer has been of record for over 10 months, plaintiff's request for any dispositive relief is unwarranted.

A motion for judgment on the pleadings is only proper where "the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint." That is not the case here. Plaintiff's Motion for Judgment on the Pleadings is **DENIED**; Defendant's *ex parte* application for Leave to file a Verified First Amended Answer is **GRANTED**. Defendant shall have 20 days to file and serve a Verified First Amended Answer.

The Clerk shall provide notice of this Ruling to the parties forthwith. Defendant to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

BARR v. COUNTY OF CALAVERAS

18CV42976

PLAINTIFF'S MOTION FOR RECONSIDERATION

This is an employment dispute, based principally on the theory that plaintiff was retaliated against after blowing the whistle on department irregularities, and ultimately denied a promotion for which he was allegedly qualified. Before the Court is plaintiff's motion to revisit this Court's 01/07/22 ruling summarily adjudicating in defendants' favor plaintiff's 8th cause of action for *negligence per se* because it was not a stand-alone cause of action, also finding that in the context of public entity liability, it was surplusage.

Plaintiff's motion, which is described as a motion for reconsideration under CCP §1008, is defective in numerous respects.

First, a motion for reconsideration may only be pursued by the party aggrieved "within 10 days after service upon the party of written notice of entry of the order." (CCP §1008(a).) Plaintiff was served with notice of this Court's 01/07/22 order on 01/14/22 and (after plaintiff's objections were overruled) on 02/14/22. The pending motion filed 07/01/22 was obviously well outside the 10-day window. (See *Novak v. Fay* (2015) 236 Cal.App.4th 329, 335-336.) Although the "changed circumstance" underlying the motion only occurred a few days prior to the filing of this motion, the "changed circumstance" rule for reconsideration (CCP §1008(b)) as a renewed motion only applies to the "party who originally made an application for an order" and that was defendants, not plaintiff. (See *Torres v. Design Group Facility Solutions, Inc.* (2020) 45 Cal.App.5th 239, 243.)

Second, even if the motion for reconsideration were somehow timely, *negligence per se* is not – nor has it even been – a stand-alone cause of action distinct from ordinary negligence. Instead, it is an evidentiary doctrine which creates a rebuttable presumption affecting the elements of breach and duty when an identified statute, ordinance, or regulation is violated. Evidence Code §669 only addresses the breach, not the underlying legal duty to act. (See *Jones v. Awad* (2019) 39 Cal.App.5th 1200, 1210-1211; *Taulbee v. EJ Distribution Corp.* (2019) 35 Cal.App.5th 590, 596; *David v. Hernandez* (2014) 226 Cal.App.4th 578, 584; *Cal. Service Station and Auto. Repair Ass'n v. American Home Assurance Co.* (1998) 62 Cal.App.4th 1166, 1178.)

Third, there is no such thing as garden-variety negligence when suing a public entity. The California Government Claims Act abolishes all public entity common law tort liability, which means that the underlying duty to act must exist within a specific statute imposing a duty to act on a public entity. (See Govt. Code §815; *Quigley v. Garden Valley Fire Protection Dist.* (2019) 7 Cal.5th 798, 803-804; *City of Los Angeles v.*